REPORTABLE (110)

(1) EMPANNAGE INVESTMENTS (PRIVATE) LIMITED (2) TIMOTHY N. CHIGANZE (3) AQUILLINA CHIGUWI
v
(1) STEPHEN P. KWARAMBA (2) ROSINA MUBAKO (3) THE REGISTRAR OF DEEDS

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHIWESHE JA & MUSAKWA JA
HARARE: 14 MAY & 3 DECEMBER 2025

R. Mabwe, for the appellant

T.S. Musundire with *C. Marara,* for the first and second respondents

MUSAKWA JA:

[1] This is an appeal against the whole judgment of the High Court (the court *a quo*) which granted a mandatory interdict in favour of the first and second respondents directing the first and second appellants to register a certain property called Stand 9, formerly Stand 17, Gletwyn Township, Harare, into the names of the first and second respondents, and the eviction of the third appellant from the named property.

BACKGROUND FACTS

[2] The appellant is a property development company registered in terms of the laws of Zimbabwe. The second appellant is the first appellant's managing director. The third appellant is a female adult. The first and second respondents are husband and wife. The third respondent is the Registrar of Deeds cited for purposes of enforcement. On 3 November 2003, the first appellant entered into an agreement of sale with the first and second respondents in

respect of a certain property called Stand 9, formerly Stand 17, Gletwyn Township, Harare. The agreement provided *inter alia* for the transfer and subdivision of the property. Clause 3 set out the purchase price as the sum of ZWL$ 70 000 000.00 payable as follows:

(a) A deposit of ZWL$ 53 000 000.00

(b) The balance of ZWL$17 000 000.00 in three equal monthly instalments

[3] Clause 5 stipulated that possession and occupation of the property would only be granted upon registration of transfer or prior to transfer at the discretion of the seller upon obtaining a Certificate of Compliance from the City of Harare. Clause 16 enumerated the conditions constituting breach. In terms of Clause 17.1, the first and second appellants were obligated to construct a house within 18 months of taking occupation, which occupation, according to the express terms of the agreement, could only occur after transfer had taken place. The first and second respondents paid the full purchase price.

[4] On 25 August 2020, the first appellant cancelled the agreement, alleging that the first and second respondents had failed to construct a house and to pay residents' association dues. A subsequent notice dated 23 September 2021, declared that the stand had been repossessed with immediate effect. In response, the first and second respondents approached their lawyers who wrote a letter to the first appellant indicating that it was not their fault that they were unable to build a house within 18 months of purchasing the property. They averred that it was the first appellant who had breached the agreement by failing to effect transfer and to comply with City of Harare terms and conditions. According to the first and second respondents, the land was not habitable. They averred that the land only became habitable sometime in 2016. They also contended that they were never advised to start developing the property. Hence,

they argued that the purported cancellation had no effect. This letter was not favoured with any response from the first appellant.

[5] On 23 November 2021, the first and second respondents filed an application for an interdict under HCH 6666/24 to compel the first and second appellants to transfer the property into their names. The first and second respondents averred that the notice purporting to cancel the agreement of sale was defective, as it did not comply with the provisions of s 8 of the Contractual Penalties Act [*Chapter 8:04*].

[6] *Per contra*, the first and second appellants raised a preliminary point to the effect that the deponent to the founding affidavit had no *locus standi*. They argued that the deponent relied on a power of attorney which purported to have been attested in Harare, whereas the first respondent was not resident in Zimbabwe. They further argued that the power of attorney featured an electronic signature whereas witnesses' signatures were handwritten. On that basis, they argued that the authenticity of the Power of Attorney was questionable and thus requested for the original Power of Attorney.

[7] On the merits, the first and second appellants insisted that the agreement of sale had been cancelled through their letter dated 23 September 2021. The first and second appellants argued that the agreement of sale was affected by hyperinflation and that the first and second respondents had failed to pay a top-up as requested by the first appellant. They further argued that no letter was written by the first and second respondents challenging the cancellation. The first and second appellants were of the view that an interdict was not the appropriate remedy but an application to set aside the cancellation. They also argued that there was no basis for an order for costs as prayed by the first and second respondents.

[8] The third appellant applied to be joined to the proceedings on 23 January 2023 under HC 445/23. She argued that she was an interested party as she had bought the property in question from the first appellant and she was occupying the same. She attached a copy of the contract of sale with the first appellant and proof of payment of the full purchase price. The application was granted. In opposing the application, she raised a preliminary point to the effect that the second respondent was merely cited, and yet no pleadings were filed by her and no Power of Attorney was issued by her. As such, the third appellant argued that the second respondent was not properly before the court *a quo*. On the merits, the third appellant argued that she was not privy to the transaction(s) between the first appellant and the first and second respondents. The third appellant argued that she was allocated the stand in question sometime in 2021 pursuant to the cancellation of the agreement between the first appellant and the first and second respondents. The third appellant argued that the relief sought by the first and second respondents had been overtaken by events as the agreement they sought to enforce had since been cancelled.

[9] The court *a quo* did not deal with the preliminary issues raised. On the merits, the court *a quo* noted that an interdict is a remedy designed to prevent unlawful conduct or to preserve existing rights. The court *a quo* found that the first and second respondents sought to protect their property rights and secure transfer of title. The court held that the first and second appellants' unilateral conduct could not lawfully override the first and second respondents' rights. The court *a quo* further held that the third appellant, claiming rights through a subsequent sale, had not credibly explained how she learned of the property's availability or what due diligence she undertook. The court *a quo* noted that the third appellant's position mirrored that of the first and second appellants, suggesting possible collusion. As a result, the court *a quo* granted the

interdict in favour of the first and second respondents. The court *a quo* further ordered the first and second appellants to transfer the said property into the names of the first and second respondents, failure of which the Sheriff of the High Court would attend to the same. The court *a quo* also ordered the eviction of the third appellant together with all those claiming occupation through her. Lastly, the court *a quo* made an order for costs at the punitive scale. Dissatisfied with the determination of the court *a quo*, the appellants noted an appeal to this Court on the following grounds of appeal:

GROUNDS OF APPEAL

"1. The court *a quo* erred in granting an interdict in favour of the first and second respondents:

(a) without interrogating the requirements for such relief.
(b) in circumstances where the requisites for such relief had not been proved by the respondents.

2. The court *a quo* erred and grossly misdirected itself in granting an order for the transfer of 'the property' within 30 (thirty) days of the court order;

(a) where the agreement between the parties had been validly cancelled at law as a result of the first and second Respondents' breach.
(b) where such breach had not been remedied at law.
(c) which order is vague as it refers to 'the property' and cannot in the absence of specificity be enforced.
(d) which claim had in any case prescribed at law.

3. The court *a quo* erred and grossly misdirected itself in granting an order of eviction of the third appellant in circumstances where the requisites for a *rei vindicatio* had neither been pleaded nor proved.

4. The court *a quo* erred and grossly misdirected itself in granting the remedy of eviction without considering that the third appellant as the current possessor had more rights at law than the first and second respondents.

5. The court *a quo* erred and grossly misdirected itself in granting relief in respect of the second respondent which second respondent was not before the court.
6. The court *a quo* erred in granting relief against the second appellant in his personal capacity where no case was pleaded against him and no liability could therefore accrue at law to his person.
7. The court *a quo* erred and grossly misdirected itself in granting a punitive order of costs against the first and second appellants without just cause."

THE APPELLANT'S SUBMISSIONS ON APPEAL

[10] At the hearing of the matter, Mrs *Mabwe*, counsel for the appellant argued that the court *a quo* erred in granting an order in favour of both respondents when the power of attorney which was filed of record only related to the first respondent and not the second respondent. She further argued that the second respondent neither filed a power of attorney nor a supporting affidavit associating herself with the averments made by the first respondent. As such, she argued that no relief ought to have accrued in favour of the second respondent because she was not properly before the court *a quo*. She further argued that the court *a quo* erred in granting the respondents an interdict, specific performance and eviction when the requirements for all those reliefs were not satisfied. With regard to the interdict, she argued that the court *a quo* erred in granting an interdict when the property in question had been repossessed. She argued that the agreement was cancelled and the property in question was repossessed. As such, a court could not grant an interdict for past wrongs. She averred that the court *a quo* erred in finding that the respondents had proved a *prima facie* right when the respondents ought to have proved a clear right in order to succeed in an application for a final interdict.

[11] With regards to specific performance, counsel argued that the court *a quo* erred by granting an order for specific performance directing the first and second appellants to transfer the property in question to the first and second respondents when the respondents had breached the agreement of sale. With regards to the eviction of the third appellant, counsel argued that the court *a quo* erred in making such an order when the first and second respondents had not satisfied the court *a quo* that they had title over the property in question in terms of s 2 of the Deeds Registries Act [*Chapter 22:05*]. She also argued that the order for punitive costs against the appellants was not justified in the circumstances.

THE RESPONDENT'S SUBMISSIONS ON APPEAL

[12] *Per contra*, Mr *Musundire*, counsel for the first and second respondents argued that the second respondent was an interested party and the court *a quo* did not err in granting an order that extended to her. He further argued that the third appellant was not an innocent buyer but that she was colluding with the first and second appellants in dispossessing the respondents of the property in question as she bought the property two days after the purported cancellation. He argued that there was no cancellation as the first and second appellants could not cancel an agreement that is *perfecta* considering that the respondents had complied with the terms of agreement of sale by paying the purchase price as well as the servicing and surveying cots. He further argued that there was no valid cancellation as the first appellant did not give the thirty days' notice of cancellation as is required in terms of s 8 of the Contractual Penalties Act.

[13] The court enquired from counsel if the first appellant had informed the respondents of the intention to cancel and the cancellation. Counsel conceded that letters were received by the

respondents on both the intention to cancel the agreement and the cancellation itself. The court further enquired from counsel on whether any party sought the eviction of the third appellant. Counsel conceded that although neither party sought such relief, the court *a quo* had the discretion to grant where it saw it fit. Counsel further argued that the order for punitive costs was justified as the appellants were colluding to prejudice the respondents and that the respondents had complied with the agreement of sale between them and the first appellant.

ISSUE FOR DETERMINATION

[14] The appeal falls for determination on the failure by the court *a quo* to determine a preliminary point that was raised before it. The point relates to the power of attorney authorising the institution of proceedings on behalf of the respondents. It was contended that the power of attorney only related to the first respondent and that the second respondent did not file any pleadings before the court *a quo*. There was also the contention that the power of attorney had not been properly attested.

THE LAW AND APPLICATION

[15] In the case of *Arafas Mtausi Gwaradzimba* v *C. J. Petron & Company (Proprietary) Limited* SC 12/16, this Court stated the following on the duty of a court:

> "The position is well settled that a court must not make a determination on only one of the issues raised by the parties and say nothing about other equally important issues raised, "unless the issue so determined can put the whole matter to rest" – *Longman Zimbabwe (Pvt) Limited* v *Midzi & Ors* 2008 (1) ZLR 198, 203 D (S)
>
> The position is also settled that where there is a dispute on some question of law or fact, there must be a judicial decision or determination on the issue in dispute. Indeed, the failure to resolve the dispute or give reasons for a determination is a misdirecton, one that vitiates the order given at the end of the trial – *Charles Kazingizi* v *Revesai Dzinoruma* HH 106/2006; *Muchapondwa* v *Madake & Ors* 2006 (1) ZLR 196 D-G, 201 A (H); *GMB* v *Muchero* 2008 (1) ZLR 216, 221 C-D (S)."

In its reasons for judgment, the court *a quo* made reference to the preliminary point. However, no determination was then made on the point. As was held in *Arafas Mtausi Gwaradzimba* v *C. J. Petron & Company (Proprietary) Ltd supra,* the omission to determine all issues and to give reasons vitiates the proceedings.

DISPOSITION

[16] It is patently evident that the court *a quo* omitted to determine an issue that was argued before it and this amounts to a misdirection. Before this Court, counsel for the respondents advanced no argument on the issue. This is an issue for determination by the court of first instance and not an appellate court.

[17] In the result this Court makes the following order:

1. The appeal is allowed with the costs.
2. The judgment of the court *a quo* is set aside.
3. The matter is remitted to the court *a quo* for a determination of the preliminary point taken by the appellants and, thereafter, if need be, the substantive issues.

MAVANGIRA JA : I agree

CHIWESHE JA : I agree

Zuze Law Chambers, appellants' legal practitioners.

Warara & Associates, 1st & 2nd respondents' legal practitioners.